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SCHUEBEL WASTED
TIME IN CHARGEATTEMPTS TO OBTAIN OTHER'S
SALARY, "PLAIN CITIZEN'S"

LETTER SAYS

CAN COUNCIL DEFY VOTERS?

At So Much Per, How Long Should
One Man Hold City Attorney
Job and Get PayOregon City, Ore., Feb. 14, 1917.
To the editor:

In the present trouble now agitating the council of Oregon City as to whether the will of the people as expressed at the late city election may or may not be defied with impunity, I beg leave to write a few plain truths direct to the people.

In December, 1915, when E. C. Hackett was elected mayor and the Stone amendment, providing for direct election of city prosecutor and city recorder, had been voted upon, C. Schuebel demanded to know if he would be re-appointed city attorney. (Mr. Story knew as soon as he read the Stone amendment that both Schuebel and Loder would hold office until the next election.) Mr. Schuebel declared that he had a number of important cases on hand, that no other attorney could attend to them and the city's interests were endangered. Mr. Hackett refused to promise to reappoint him, whereupon he departed in great wrath, vowing that he would "fix that sheriff's office," where Mr. Hackett was and still is chief deputy.

We all know that he continued to hold the office because there was nothing that could be done differently and he also drew his salary right along.

But when the time approached for another city election, Mr. Schuebel wrote a letter to the Enterprise, asking that the people vote for him, that there were a number of important cases to be handled, and the city's interests were at stake, and more along that line.

Now, as a plain ordinary citizen, I should like to ask how many years' time the man wanted to do one year's work in (at so much per)? Also why should anyone have the face to ask for a re-election to office to do work that should have been done one or two years before?

When Mr. Story's term of office expired, he left no unfinished business to his successor.

Furthermore, while George L. Story was city attorney the city never paid one dollar for legal advice to any other person, and the city never lost one dollar through following his advice.

I have seen several surprising things in my life, but I never expected to see a defeated candidate make such desperate efforts to obtain the salary of the man who was elected fairly and honestly by the people.

Let no one think the people were deceived in any way—they voted for Mr. Story to do the legal work of this city—city prosecutor and city attorney—and they expected the \$75 per month salary to go to the man they voted to do the work.

Through his medium of expression, the Daily Enterprise (frequently called "The Daily Prevaricator"), Schuebel claims to have "combined the offices of city attorney and city prosecutor for the last three years." I should like to know when in the history of this town there was any division of these "offices." The legal work of this city has always been done by one attorney.

Personally, I should prefer to associate with an everyday highwayman than with those members of the Oregon City council who passed the so-called resolution employing Schuebel to do the work and giving him the money that the people had voted to Mr. Story. A crook who claims to be better than other men and who wears the cloak of piety is the worst crook of all.

BERTHA M. STORY.

School Boundaries Change

One hundred acres of the Mark's Prairie school district was cut off and added to the Lone Elder district Friday by action of the county boundary board, including J. E. Calavan, county superintendent, and the two county commissioners. The change affects only a few children. Certain territory in Yamhill county was added to the Lad Hill district, which is maintained jointly by Clackamas and Yamhill counties. A petition from the Dickey Prairie district asking for a piece of the Engles district, including practically an entire township and involving property assessed at more than \$400,000, was laid aside for the time being.

La Croy Appointed

J. E. La Croy was Tuesday appointed administrator of the estate of his late father, George W. La Croy, who died on November 7 last. The estate comprises real and personal property valued at \$7000, and there are eight heirs.

WATER BOARD WANTS
ALL MONEY OR NONETALKS OF STRETCHING LIMITS
TO INCLUDE OTHER CENTERS
DESIRING SERVICE

The Oregon City water board is besieged with requests for water service by enterprising groups in surrounding communities. As a result the board has discussed two possible plans for supplying liquid refreshment from the famous South Fork pipe line. The local system is owned jointly by Oregon City and West Linn and the board has a secret ambition to furnish water to other users on this side of the river without splitting the spoils with West Linn.

The board will have two propositions to submit. One is to absorb the nearby territory, extending the city limits, and the other provides for furnishing water under contract. Members of the board favor the extension of the corporation limits because none of the petitioning communities can finance their own system and in case water is furnished under contract one-third of the proceeds must go to West Linn. Oregon City owns two-thirds and West Linn one-third of the South Fork system.

Gladstone was the first community to seek water service through Oregon City. Since that time Parkplace, Canemah, Maple Lane and Clackamas Heights have signified a desire for connection. West Linn last summer absorbed Bolton and Willamette in order to provide water for these districts and Oregon City would work upon similar plans. The only reason for discussing the absorption idea is to devise a plan by which all the revenue would accrue to Oregon City.

If the board decides that the extension of the city boundaries is desired it will submit the matter to a vote in Oregon City and the petitioning communities.

MEYERS BOUND OVER

Justice Sievers Hears Case on Charge
of Cruelty to Animals

Fred Meyers, Marquam farmer arrested recently on a charge of cruelty to animals, was bound over to the grand jury in Justice John N. Sievers' court Monday, following a preliminary hearing at which he pleaded not guilty. Mr. Meyers said that he was unaware of the condition of his livestock because of the distance between his home and the barn on his 2000-acre farm. It was charged that 15 head of cattle and goats had been found dead in the snow on the farm. Complaining witnesses were C. B. Anderson, a neighbor, and the Clackamas County Humane society. Mr. Meyers lives as a bachelor on his large farm and is one of the most prosperous farmers in the Marquam district.

INQUIRY BOARD REPORTS

Adams and Howland Aid in Investigation of Minor Accident

A board of inquiry appointed by the Southern Pacific company to investigate the cause of the derailment of the Willamette street car on the west side of the river on January 31, has reported to the company. The board included three company employees and L. Adams and A. C. Howland, of Oregon City. These gentlemen found the car and equipment in good condition, but discovered that a joint in the rail on the curve where the car jumped the track was low. No recommendation is made, but the board found that Section Foreman J. E. Cochran was responsible for the derailment because he permitted the track to become in unsafe condition.

WEST LINN TO VOTE

Decide Upon Election to Provide for
\$14,000 Bond Issue

A special election will be called at West Linn to vote upon the issue of \$14,000 in bonds for the construction of a modern grammar school. This action was decided upon at a mass meeting of West Linn citizens on Friday evening at the Sunset school house. The school directors, members of the city council and the general public attended the meeting and voted for the special election after the needs of the district had been presented.

Architect's drawings of the proposed school house were submitted, but the plan will be selected by the school board. The bond issue will be \$14,000 in 15-year bonds, covering the estimated cost of the new building. W. C. McDonald, chairman of the school board, presided at the meeting.

Three Divorces Granted

Three divorce decrees were signed by Judge J. U. Campbell last Thursday. Erma E. Jost will be permitted to resume her maiden name, Erma Soule, as a result of the decree against John Jost, Jr. M. Winnifred Jones was divorced from Clifford L. Jones and her maiden name, M. Winnifred Saunders, was restored. Rose Hackett won a decree in her suit against A. R. Hackett. She is given custody of a minor child, Richard Edwin Hackett, and \$20 monthly.

BANTER TIES UP
NEW AUDITORIUMDIRECTORS ARGUE ABOUT PLAN
AND MAKE NO DECISION
TO BUILD

SUPPORTERS ARE ANXIOUS

"We Did Nothing," is Report of
Board Meetings. Slight
Debt Possible

In view of many meetings held within a few days, there appears to be a decided tendency to quibble over the proposed new Gladstone Park chautauqua auditorium. The members of the building committee, presented with plans for an acceptable building, are still debating in their secret conferences the very basis of the matter. They have not reached any definite decision as to the type of building they would have, nor, in fact, have they certainly decided that they want any building at all. All of which is wrong and is very generally viewed as folly on the part of the committee.

Gladstone park is probably Clackamas county's greatest scenic asset. Certainly the chautauqua is the county's greatest educational and entertainment institution. That its affairs should be so tangled in delay is to be regretted and those who are prominent in the delay should be discredited for their inactivity.

In attempting to learn the news of each meeting, inquirers are usually answered with: "We didn't do anything. Spent the hour talking about plans." The truth of the matter is that the building committee decides one day upon one building and the next day another influence enters in and there is to be no new building at all.

Generally the idea of a new auditorium is favored. There is no desire among chautauqua patrons to again coop themselves up in the trap that was used last year and for 23 years before that. There is assurance that \$4000 of the necessary \$5500 can be secured, yet the building committee will not, without a lot of debate and wasted time, get down to work.

Since the chautauqua draws more people into Clackamas county than any other two attractions and since the assembly is the largest and most important, perhaps, on the Pacific coast, this delay on the part of the directors is little and cheap.

H. E. Cross will be gone to the eternal chautauqua before the free lease he has given the Willamette valley association is expired. He cannot profit from Gladstone park because he is honorably bound by the terms of his lease. He has given the best years of his life, and much of the best energy of those years in making the Gladstone assembly what it is today, and for this reason, if under no other consideration, the directors should set about erecting the proposed auditorium.

If the present auditorium, unfit as it is, will draw thousands of people into Clackamas county from Portland, and people from other parts of the county, surely a new building would bring more. The \$1500 which the directors seem to demand before they will bring plans to a head could be realized in a single season with a new and suitable auditorium. Assured a new building there are many people, too, who would be willing to contribute to raise any debt that might be incurred.

This quibbling is simply killing the spirit that should be back of the assembly. Men are brought to Gladstone park to preach progress, but those who obtain such services seem the least ready to grasp the idea. A debt of \$1500 is a mere trifle if its existence would mean a new home for the chautauqua programs.

Those who believe in the chautauqua, its purposes and its accomplishments, will not be satisfied with a reconstruction of the present auditorium. That would be a waste of money, for the present building has outlived its usefulness and wasn't the best building in the land when it was new.

Here, then, is an opportunity for putting the Gladstone chautauqua several steps ahead of its present position. If it is to maintain its place as being superior to any other assembly its directors must realize that it is dependent upon public support and that the public has a right to demand decent accommodation. The people interested in the assembly have shown that they want a new building by donating to a fund for the purpose and by buying stock in the association. Let us induce our friends the board of directors and the gentlemen of the building committee to cease their windy arguments and show that they want to give a respectable return for the money the people of the county have spent with their institution by getting promptly at the task of erecting the auditorium.

Once again we suggest that you subscribe to the Courier and four standard magazines. \$1.25.

BROWN CRITICISES
CAMPBELL DECISIONSENDS INSTRUCTION TO JUDGES
SAYS LOCAL CONSTRUCTION
IS STRAINED

Attorney General Brown from Salem has sent a brief to the five circuit judges in the state who still have Hyde-Benson land cases under consideration. The attorney general takes exception to the decision of the Clackamas county case, as made by Judge Campbell, in which the court holds that the statute of 1901 validated the state's transactions made before that time. The attorney general says:

"The title of the act does not indicate or convey to the mind of the reader thereof that the legislature expected that portion thereof reading 'and confirming and validating all sales made by the said board' to apply to any sales except those made by the board relating to lands acquired through foreclosure of mortgages on privately-owned lands.

"The legislature refers to sales made by the board. Nothing whatever is said anywhere in the act about any deed issued by the board.

"When it refers to deals it refers to sales mentioned in the preceding portion of the act. Those are the sales referred to and not sales foreign to those mentioned therein. The legislature was ratifying the acts of the land board, a subordinate branch of the government, which has made sales apparently without authority of the law. It did have in mind deeds such as the one involved in these suits and which the board, under the circumstances, had authority to issue and which were voidable and not void.

"It is against the public policy of the state to countenance fraud of any sort, and to say that not a single member of the legislature of 1901 raised his voice against an attempt to legalize fraudulent transactions, if it was intended to accomplish such a purpose, is to lower in the minds of every one the purpose of organized society.

"If the state would countenance such fraud against itself (which consists of its citizens) when its own public policy has been violated, and its citizens induced to commit perjury, how could it expect to enforce among its own citizens honest and fair dealing? Of what use would be its courts of equity, which exist for the purpose of preventing a wrongdoer from profiting from his own fraudulent transactions?

"The construction which Judge Campbell places upon this act is almost as strained as when he says that the state has not been defrauded, and that the only persons who have been defrauded are the applicants for this land—these persons who unknowingly committed perjury, and who were used as tools of Hyde and his associates for the purpose of acquiring these lands."

THREE GREAT DAYS

County Clerk Harrington Enjoys
Birthday at Official Labors

The great days of the year come all bunched up to make the greatest one more happy. Perhaps that is the way County Clerk Iva Harrington looks at the matter. Miss Harrington enjoys a perfectly good birthday anniversary sandwiched in between Lincoln's birthday and Valentine day and doesn't worry a bit because the "filling" between the other days is the 13th. In fact, a cheery sort of feeling permeated the county clerk's office on Tuesday when the official head of the force officially added another year to her age.

And every year has been so splendid in the life of Clackamas county's capable and charming clerk that she would not live a one of them over again if it would deny her any of the delights she has found on the journey thus far. Amid a mass of work Miss Harrington almost forgot that Tuesday was her birthday anniversary.

PETITION COMMISSION

Would Have Foot Path Over Espee
Tracks at Ardenwald

The county court Friday forwarded to the public service commission a petition asking for the opening of a foot crossing over the Southern Pacific tracks near Ardenwald. Recently the company erected barred wire barriers along its right of way and more than a score of children in the Sellwood Garden district were kept from attendance at the Ardenwald school. The public service commission refused to ask the establishment of a grade crossing and suggested an under-grade passage. The court does not see its way clear for such construction and since the children use the crossing most it has been decided to request the foot path. The wires were cut recently with the permission of the railroad company while the matter is being settled.

Special Service at Willamette

There will be special service in the church in Willamette Sunday evening at 7:30 o'clock. Rev. John Oval will preach. Good songs and music will be rendered.

30 FARMERS GET
P. P. I. E. PRIZESLIVE WIRES GREET WINNERS
AT LUNCH AND PRAISE
THEIR SPIRIT

TAKE RAP AT LEGISLATORS

Country and City Favors Rise in
Wages of County's Office
Holders

A new spirit—a spirit of harmony—was manifested at the weekly meeting of the Live Wires of the Commercial club on Tuesday when thirty farmers from all parts of the county were present to receive the medals and diplomas they had won at the recent San Francisco exposition. The ceremony was designated as "medal day" by the Wires and the designation was a worthy one in view of the fact that Clackamas county won more awards at San Francisco than any other county in the state or on the Pacific coast.

The meeting was one of the most enthusiastic held by the Wires this year. Main trunk C. Schuebel presided and O. D. Eby, president of the Commercial club, distributed the medals and awards. There were several speakers during the hour, including County Judge H. S. Anderson, Judge Grant B. Dimick, Mr. Schuebel, Mr. Eby and B. T. McBain. Judge Anderson and Judge Dimick spoke strongly in their praise of the farmers who have made such a record for Clackamas county and the former laid special emphasis upon the coming county and state fairs, where there should be the same interest as there was at San Francisco.

O. E. Freytag, who had charge of the Clackamas county displays at San Francisco, reviewed the accomplishments of the farmers of the county who were represented there and told the tribute paid by Luther Burbank, the plant wizard, to the farmers of this county. Looking over Clackamas county's display of grains and grasses Mr. Burbank said: "That is the finest collection of grains and grasses I have ever seen anywhere."

Several of the medal winners took part in the discussions at the meeting. They were especially interested in a debate upon the bills introduced at Salem to increase the salaries of the judge and school superintendent of this county. After arguments on each side, the Wires, with all the farmers present voting, unanimously supported the resolution to approve the bills. Another resolution upon which a unanimous vote was recorded was that extending a vote of thanks to Senator Walter A. Dimick and Representative H. A. Dedman for the work they have done during the present legislative session.

The ladies served a delicious dinner to the club and its guests and the long tables held a harmonious gathering of city men and country men. It was so harmonious, in fact, that several speakers eulogized the brethren in eastern Clackamas county, and spoke hopefully for a renewal of pleasant relations with all parts of the county. Judge Anderson, talking upon this subject, said that Astoria and all other parts of the county, would continue to receive their just portion of all funds raised in this county as long as he was its judge. He denied flatly the statements made at Salem that the special road tax assessed in the eastern districts had not been returned to them. Every cent of this money that was collected was returned, the judge said, and any part of an assessment that was not returned was not paid.

Speakers criticized the actions and language of certain legislators from this county as used upon the floor of the house at Salem. Such language, it was intimated by Judge Grant B. Dimick, not only reflected upon the speaker but upon those against whom the remarks were directed. That many falsehoods were injected into the county division fight by the advocates of Cascade county was the statement of Judge Dimick.

Those who received medals and diplomas at the meeting were George G. Gregory, Henry Boege, Michael Hemrich, Will Luckey, Chris Naegeli, O. E. Freytag, John Risley, G. A. Schuebel, W. P. Kirchman, George Ingram, Fred Hutchings, W. F. Mueller, J. W. Smith, Fred W. Reibhoff, Johnson Bros., Richard Simms, H. Loney, August Steahley, Frank Jagers, Fred Rodermahl, D. O. Chindgren, Joseph Bachmann, E. R. Leek, H. S. Anderson, C. E. Spence, H. W. Hagermann, Louis Funk, Fred Steiner, John Wise, E. W. Hutchins, Alfred H. Spangler, Gus Fischer and W. H. Brown.

The Wires have invited a delegation of Oswego people to be guests at luncheon next Tuesday and will provide an interesting program for their entertainment.

The Oregon City Courier and Oregon Daily Journal (except Sunday) \$4.75.

BRIDGES IS IN BAD
THE JUDGE DECIDESVOTE IN COUNCIL IS VOID AND
SCHUEBEL HAS NOT YET
BEEN OUSTED

Because Isom C. Bridges, councilman from the third ward, occupied his seat and exercised his vote at the council meeting Wednesday evening, he was last week ordered to appear and show cause why he should not be arrested for contempt of court. Last week Judge J. U. Campbell decided that Bridges, elected to the council last December, was ineligible for aldermanic duties because he had not satisfied residence requirements. Bridges gave notice, following the decision, of an appeal to the state supreme court. The same evening he attended the council meeting and voted upon important matters.

On Tuesday morning Mr. Bridges appeared to answer the summons of the court and show why he should not be held in contempt of court. His attorneys told the court that he had been instructed not to vote during the time the supreme court action is pending and his vote at the meeting last week was held for naught and declared void. Later the same day attorneys returned to court to argue the matter with a view to having the full powers of Mr. Bridges as councilman restored to him. Judge Campbell refused to recognize the suggestion and intimated that any attempt to exercise the duties of the position would be disapproved by the court.

The case against Mr. Bridges is the result of a suit filed by E. B. Andrews, whom Bridges defeated for election from the third ward. Mr. Andrews alleged that his successful opponent had not lived in the city a full year prior to his election and was, therefore, not qualified for the office.

At the council session last Wednesday night Mr. Bridges voted upon important matters and his ballot decided the contest to do away with the services of C. Schuebel, city attorney. And because of that vote Mr. Andrews demanded to know why Bridges should not be held in contempt of court and arrested therefor. C. Schuebel, attorney for Mr. Andrews, agreed to suspend the affidavit citing Mr. Bridges to appear during the time Mr. Bridges refrains from voting at the council sessions.

TO FIGHT MAIL ORDERS

Marchants' Association Has Two
Plans for Bettering Conditions

Because of two plans for bettering merchandising conditions in the northwest the approaching meeting of the Oregon Retail Merchants' association is expected to prove the most important in its history. They are a plan to stop the mail order business in the northwest and to provide a fruit and produce clearing house for the benefit of farmers everywhere.

The meeting is to be held in Portland on February 19, 20 and 21, and of such an impressive character that the railroads have granted reduced rates from Oregon, Washington and Idaho territory. It is expected that 2000 merchants of the territory will be in attendance.

To carry the fight to the big mail order concerns it is expected that a fund of \$10,000 will be raised as a starter, and that more funds will be forthcoming as they are needed.

There seems to be a decidedly determined feeling toward curbing the mail order fellows in the northwest. The movement is of interest to men in every line of business, and is said to take in the newspaper publishers.

President Barlow urges all retail merchants of Oregon, Washington and Idaho to be in Portland for participation in the meeting. He believes they should get first hand information as to how the mail order houses are to be fought, and be able to do their share in carrying on their campaign.

OUR NATION FIRST

Hawley Mills Adopt Patriotic Slogan
in Face of Country's Peril

Our own safety is secondary to the safety and welfare of the nation in any crisis that may present itself. This is the broad principle behind the slogan adopted by the Hawley Pulp & Paper Co. on Saturday. "America First—Safety Second," is the slogan which is being heralded about the big Hawley mills. It is printed on placards and hangs from walls in many places where it will command attention. It is probable, too, that the slogan will grace the stationery of the mill company. In explanation of the purpose of the slogan, Willard P. Hawley, Jr., said Saturday: "We believe that the safety of our country is far more important than our own personal safety. While we work at all times to bring about the greatest degree of personal safety in our mills we also have in mind the fact that our country faces a great international crisis and it is our desire to lend all aid possible to insure the utmost safety of the nation. Therefore, our country's safety first, our own safety second, for in a measure national safety means personal safety."

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GILL BILL WILL
BAR NET FISHINGDIMICK SLAPS ANGLERS WHO
TAKE BREAD FROM MOUTH
OF INDUSTRY

BOTH HOUSES PASS MEASURE

Brownell Valiantly Attempts to Defeat
Legislation. Vote Trade
Is Charged

It seems that the commercial fishermen who for years have gained a livelihood from the Willamette river are doomed to seek other employment or to go without. With the passage of the Gill bill at Salem yesterday the measure went to Governor Withycombe for signature and the last ray of hope for the commercial fish business as far as the Willamette is concerned went glimmering.

Last Thursday the Gill bill, closing the Willamette to commercial fishing almost to Oswego passed the senate. Yesterday strong debate failed to halt its progress and it passed the lower house by a large vote. It awaits the signature of the governor.

Last week, when the bill was in the senate, Senator Walter A. Dimick led a strong fight against it for nearly an hour. His talk took up just 50 minutes and during that time he pointed out every phase of the objections to depriving fishermen of the freedom of the river. In spite of Senator Dimick the vote favored the bill. Senator Dimick pointed out the well known fact that the fish will die in overwhelming numbers and that the anglers cannot hope to catch them. He pointed out the need of new ladder facilities before such restrictive legislation is passed and he contended against the statements made by those favoring the bill.

He presented newspaper articles, affidavits, figures and fact—but the men at Salem who do not know the conditions here—the big, brave fellows who were dictated to by the Multnomah Anglers' club—passed the Gill bill.

Senator Dimick shot holes in the argument that fishermen from the Columbia and other parts come to Oregon City during the salmon runs and get the best of the run. He showed that an average of more than 99 out of every hundred fishermen were local residents. The affidavits he presented bore his statements out, and were signed by many of the prominent people here and elsewhere along the river who are in a position to know conditions as they are. Senator Dimick's plea for a continuation of the means of livelihood for many fishermen was touching. He accused the men favoring the bill with ulterior motives and charged them with making a plaything of the Gill bill by trading votes with other senators in order to assure its passage.

On Wednesday the Gill bill was voted upon in the lower house. There Representative George C. Brownell led the fight against it. His best efforts, however, turned only 11 votes against the bill and it was passed. A great lobby from the Multnomah Anglers' club was present and the efforts of the organization are largely responsible for passing the bill.

Brownell is praised at Salem for the fine fight he made against the bill and for his arguments. He warned the legislators that they would be robbing nearly 350 fishermen of a living if the bill was passed and would be directly responsible for a great loss of salmon in the river. He also pointed out the need of additional fish ladders.

The Clackamas county legislators are to be given credit for valiant efforts to protect the industry built up here by the commercial salmon netters. Both Dimick and Brownell entered into the fight against the Gill bill with a heart in their work. They live here and know what they are talking about on the subject of salmon fishing. It is said that the fight against this bill in the senate and house was the most capable work yet attempted by Brownell and Dimick.

Wilbur Appeal Ready

District Attorney Gilbert L. Hegdles and attorneys for Julius Wilbur, former proprietor of the Friars' club at Milwaukee, agreed Friday on the bill of exceptions and the case is ready for the supreme court. Wilbur was convicted here some time ago for violation of the prohibition laws and a six months' jail sentence is hanging over him. Former Senator Charles F. Fulton of Portland is representing Wilbur.

Baker Is Sued

Edward Young, proprietor of a bakery in this city, accepted the terms of the insurance of the state industrial accident commission some time ago, and has failed to pay his subscription to the fund, according to a complaint filed against him by the commission Monday. The suit would recover \$80.87, the amount of Mr. Young's percentage contribution.